

TENTATIVE RULING

Dion L. Johnson

v.

S. Aceves

22CV003240

Plaintiff's Motion for Summary Judgment or, Alternatively, Summary Adjudication

Hearing Date: August 7, 2026

Plaintiff Dion L. Johnson ("Plaintiff") files a motion for summary judgment claiming he is entitled to judgment solely on his First Cause of Action for defamation and his claim for exemplary damages. [Notice of Motion at 1-2.] However, his First Amended Complaint ("FAC") includes additional claims against Defendant, such as "Wrongful Demotion and Decrease in Pay," Negligent Infliction of Emotional Distress, Retaliation, and "Intentional Infliction of Substantial Emotional Distress." [FAC at 7-14.] The summary-judgment motion does not address or mention these other claims. Consequently, the motion is **DENIED** because Plaintiff has not demonstrated that there are no defenses for all causes of action by proving each element of those causes. [Code Civ. Proc. § 437c, subd. (p)(1).]

Regarding Plaintiff's alternative motion for summary adjudication of the First Cause of Action for defamation and claim for exemplary damages, the motion is **DENIED**. Defendant has shown that factual disputes exist—particularly concerning the element of falsity.

Defendant's lack-of-notice objection is **MOOT**. This Court's May 12, 2026, order granting Plaintiff's ex parte application to continue the motion hearing to August 7 provided Defendant with the full statutory notice period under Code of Civil Procedure section 437c, subdivision (a)(2).

Legal Standard.

Summary adjudication is warranted where there are no triable issues of material fact, and the moving party is entitled to judgment as a matter of law. [Code Civ. Proc. § 437c, subd. (f); *see Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.] Further, a "motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." [Code Civ. Proc. § 437c, subd. (f)(1).]

A motion for summary adjudication proceeds "in all procedural respects as a motion for summary judgment." [Code Civ. Proc. § 437c, subd. (f)(2).] The initial burden always rests on the moving party to make a prima facie showing that no material factual issues are in dispute. [*Choochagi v. Barracuda Networks, Inc.* (2020) 60 Cal.App.5th 444, 453.] Courts follow a three-step process when reviewing a motion for summary adjudication: (1) identify the issues outlined by the pleadings; (2) evaluate whether the moving party has disproved the opponent's claims;

and (3) assess if the opposition has shown there is a triable factual issue. [*Hinesley v. Oakshade Town Center* (2005) 135 Cal.App.4th 289, 294.]

When a plaintiff moves for summary adjudication, they fulfill their initial burden by demonstrating that there is no defense to a cause of action if they prove each element of the cause of action, thereby entitling them to judgment as a matter of law. [Code Civ. Proc. § 437c, subd. (p)(1).] Failure to meet this burden results in the denial of the motion, ending the inquiry. [*Id.*]

Even if the moving plaintiff meets their burden, the opposing defendant can still defeat a summary adjudication motion by presenting evidence that raises a triable issue of fact. [*Aguilar*, 25 Cal. 4th at 849-850.] The defendant cannot rely solely on allegations or denials in their pleadings; instead, they must present specific facts indicating the existence of a triable issue of material fact concerning the cause of action. [Code Civ. Proc. § 437c, subd. (p)(1).] If the defendant fails to do so, summary adjudication should be granted.

The court must liberally construe the evidence presented by the party opposing summary adjudication, resolving all doubts and making all reasonable inferences in favor of that party. [*Aguilar*, 25 Cal.4th at 844-845.] When reviewing such a motion, the court must consider what inferences a factfinder could reasonably draw that favor the opposing party. [*Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 839.] The main role of the court is to identify issues, not to decide them; only clear and indisputable inferences can lead to a legal resolution. [*Ibid.*] If evidence conflicts, factual disputes must be resolved during trial. [*Ibid.*] Furthermore, the trial court cannot weigh evidence as a factfinder would to determine credibility, nor can it grant summary adjudication based on credibility assessments. [*Id.* at 840.]

Discussion.

On page one of this Tentative Ruling, the Court addressed why it is denying summary judgment. The discussion below focuses on Plaintiff's motion for summary adjudication.

In the FAC's cause of action for defamation, Plaintiff alleges that Defendant "made an oral publication to an unknown number of CALPIA Supervisors and third persons falsely accusing [him] of 'exhibitionist masturbation' towards her person while presenting his tounge in a sexually suggestive manner." [FAC at 4 (sic).] "The tort of defamation involves (a) a publication that is (b) false, (c) defamatory, and (d) unprivileged, and that (e) has a natural tendency to injure or that causes special damage." [*Taus v. Loftus* (2007) 40 Cal.4th 683, 720 (internal quotes and citation omitted).]

Plaintiff met his initial summary-adjudication burden to establish all elements of the defamation claim. [Code Civ. Proc. § 437c, subd. (p)(1).] Plaintiff has presented evidence to make his prima facie case that Defendant published a statement regarding him touching himself and making a sexual gesture with his tongue, which he avers is false and has injured him. [Plaintiff's Separate Statement of Undisputed Material Facts ("Plaintiff's Fact(s)") 1-2.] The burden now shifts to Defendant to show that triable factual issues exist as to the defamation cause of action.

Defendant has demonstrated that genuine factual disputes exist that require a trial. In her declaration, Defendant explains that on March 11, 2022, she saw Plaintiff put his hand down his pants, told her his groin itched due to surgery, and later made a suggestive tongue gesture. [Defendant's Reply to Plaintiff's Fact 1 (citing Defendant's Decl. at ¶¶ 4-6).] She reported this behavior to her supervisor and submitted a Supervisor's Report Form. [Defendant's Decl. at ¶¶ 6-7.] She affirms that her statements have always been truthful and denies ever discussing the plaintiff with inmates. [*Id.* at ¶¶ 8-9.] Her declaration raises disputed factual issues regarding whether her statements were false, which are crucial to both the defamation and punitive damages claims. Since falsity is a key element, Plaintiff's motion for summary adjudication is **DENIED**. Arguments regarding her alleged retreat from statements, medical conditions, failure to follow internal reporting policies, and alleged sharing of information with inmates do not resolve the factual dispute based on her sworn testimony. These questions are for the fact-finder to determine.

Conclusion.

Plaintiff's motion for summary judgment and his alternative motion for summary adjudication are **DENIED**. Plaintiff's motion presents a classic factual dispute: he declares the accusation was false; Defendant declares it was true. Credibility conflicts cannot be resolved on summary judgment or summary adjudication. Indeed, to defeat the motion, Defendant needs only to produce evidence of a factual dispute; she need not conclusively prove a defense. [*See Aguilar*, 25 Cal.4th at 850.]

Defendant shall prepare the Proposed Order consistent with this Tentative Ruling.